We Too

by Jacob Shapiro and
Madeline Aebersold



We Too by Jacob Shapiro and Madeline Aebersold

ISBN. 978-1-61387-118-8

Copyright 2019 by SpeechGeek.

Free performance of this play for high school and college level competitive forensics is permitted. All other rights reserved.

This PDF version of this selection, e-published in 2019, is identical to the printed published version of this same publication dated 2019. This statement along with the entire printed PDF of this publication must be presented at any National Speech and Debate Association District or National event for the script to comply with NSDA rules per the request of the Executive Director.

This and other selections of quality performance literature for competitive oral interpretation are published by SpeechGeek.

For more information and performance rights, contact **SpeechGeek.**

SpeechGeek
248 Arlington Park Dr.
Hot Springs, AR 71901

Phone. 1-888-742-2028
Email. thegeek@speechgeek.com
Web. www.speechgeek.com
Facebook. www.facebook.com/speechgeek

Author's Notes: *The characters in this play have suggested genders. However, for the sake of performance, actors may choose to change any of the genders and gendered references of any of the characters except for Jim Calloway. And in the event that the gender is changed for Aaron or Gabby, the script may be adapted to reflect that (Sister instead of Brother, Black pants and red t-shirt instead of black dress and red cardigan, etc.). Performers may also choose to collapse the defense Lawyers into a single character for the sake of performance.*

BAILIFFS. All rise!

AARON. Your honor. Ladies and gentlemen of the jury. Thank you for being here today. It is not an easy day for any of us, but it is important to acknowledge that the role we all play today is what makes tomorrow easier. I was going to start by telling you about the victim. My sister—twin sister—Gabby. She is the kind of person who wears every emotion right on her face. Which is how I knew right away that something was terribly wrong.

TRANSITION TO GABBY AND AARON'S APARTMENT - FEB 13

AARON. Gabby?

GABBY. (*she sits quietly, shell shocked and horrified*)

AARON. Hey, you're home! Ugh, what a crazy ass day! First, I asked the guy at the coffee cart outside the courthouse for a half a cup so I wouldn't spill on myself. And as he is handing it to me, the bottom of the cup is like just gone—totally disintegrates! And so now I've got coffee all over my sleeve, and I'm due in court in like 10 minutes. Then I get in there, and you'll never guess who the defense attorney is. It was ANGELA CONNOR. What are the odds? My first case as lead prosecutor and I have to deal with a defense attorney who's seen me naked. And on our way out, she says "Do you still live with your sister?" and I'm like "We shared a womb. We are not good with distance." And she said "Yeah, that was always your problem," and I was like WHAT? Can you believe that?!

GABBY. (*she cannot speak, there is too much to try to say*)

AARON. Gabby…? Sis? What's wrong? What happened?

GABBY. (*she starts to cry*)

TRANSITION TO COURTROOM - OCT 21

AARON. That silence, ladies and gentlemen of the jury, was the worst silence of our lives. But unfortunately, when it comes to sexual assault, it's the first of many.

For many survivors, sexual assault is just the beginning of the injustice. For twins Gabby and Aaron, the road to recovery means navigating the confusing, humiliating, and often re-

victimizing process of the legal system. While the #METOO movement has been monumental in helping victims speak out against injustice, the response to their raised voices must not be silence. Victims cannot heal alone. We Too*, by Jacob Shapiro and Madeline Aebersold*

TRANSITION TO GABBY AND AARON'S APARTMENT - FEB 20

AARON. You must be exhausted. Are you hungry? Do you want something to eat?
GABBY. No.
AARON. You want a drink?
GABBY. No.
AARON. You want a hug?
GABBY. No.
AARON. Ok…do you want…?
GABBY. Aaron, stop trying to be helpful. I don't need food or drinks or hugs right now.
AARON. OK.
GABBY. Can we just… be normal? Like, I don't want to talk about this anymore, and I don't want to think about this anymore and I don't want to deal with you tiptoeing around like a six-foot ballerina.
AARON. Like a six-foot ballerina, huh? (*starts to smile*)
GABBY. (*knows where this is going, starts to smile in spite of herself*) …don't.
AARON. (*begins to dance*) No tip-toeing. I'm just hanging out… and now…I'm picking up around the house…and now to the kitchen!
GABBY. Wow.
AARON. Pretty good, right?
GABBY. All that's missing is the tutu.
AARON. I think we can all agree that it is not missed.
GABBY. Thank you. That was what I needed.
AARON. This whole thing is gonna suck for a while.
GABBY. Yeah.
AARON. And I am so proud of you for pressing charges, but there's going to be a trial. You know that, right?
GABBY. Yeah. (*pause*) Aaron, I want you to be my lawyer.
AARON. Me? No. They'll put someone more senior on it. Maybe even the D.A.
GABBY. I don't want the D.A. I want you to do it.
AARON. Me.
GABBY. You. That's what big brothers are for.
AARON. OK. I'll handle it. I'll handle everything.

TRANSITION TO COURTROOM - APRIL 3

LAWYER A. Do you swear to tell the whole truth, so help you God?
GABBY I do.
LAWYER A. This is the testimony of Gabriella Garza. Plaintiff in *Garza v. Calloway*. Present are the Plaintiff, lead counsel for the

prosecution, Aaron Garza. Lead counsel for the defense, Associates Steinbeck…

LAWYER B. …and Stevens. If all parties are in agreement, let's begin. Ms. Garza, please describe the events of the night in question.

GABBY. (*addresses the jury*) It was February 12th. I went to a Valentine's Day party, after work.

AARON. Point of clarification, she works in a restaurant.

GABBY. Gino's on Grand. It's…it *was* a nice place to work. I haven't been able to… I get panic attacks, and public bathrooms are triggers for me now so I…

AARON. It's okay, Gabs. Just tell them what happened.

GABBY. Right. So I went to this party. I didn't know the people throwing the party, but I was there with my friends. They knew everybody. I felt like I wasn't dressed up enough—I was just wearing an old black dress and a red cardigan. But anyway, I was just sitting there, and this guy walks over.

AARON. The defendant?

LAWYER B. Objection. Leading the witness.

AARON. Apologies. Gabby, can you please specify who this "guy" was?

GABBY. Yes. It was the defendant, Jim Calloway. I didn't know his name at the time, though. I had only seen him around a few times before. He had come into the restaurant, maybe. Anyway, he seemed nice, offered me a drink.

LAWYER A. And had you been drinking before that?

GABBY. No. I had only been at the party for about 15 minutes. I hadn't had a chance to find the bar or the kitchen or anything. And it was very crowded.

LAWYER A. And you didn't drink before you went there.

GABBY. No. I went right after work.

LAWYER A. And your outfit—

GABBY. A black dress and a red cardigan.

LAWYER A. Those are standard apparel at your work?

GABBY. The black dress is. But the red cardigan isn't.

LAWYER A. So you didn't go straight to the party after work. You had to stop at home for your cardigan. While you were home, did you drink?

AARON. Let me stop this right there. She didn't go home, she brought the cardigan with her in her car. She did not drink before she left work, nor on the way to the party. She wasn't drunk.

LAWYER B. So, you weren't drunk. Did you use any drugs that night?

AARON. Objection. That question is irrelevant, and my sister doesn't do drugs.

LAWYER B. We are trying to determine the plaintiff's state of mind at the time of the incident.

AARON. The attack.

LAWYER B. Objection. Prejudicial language, your honor.

AARON. Removed.

GABBY. And I didn't even drink the one he gave me. I am really careful about taking drinks from strangers, because, you know, you hear all these bad things that happened at parties.

LAWYER A. Where did you hear those bad things? And if you heard that it was dangerous, why did you go to this party and flirt with a stranger to begin with?

AARON. She wasn't flirting.

GABBY. I might have been flirting.

LAWYER B. Counselor, you are leading the witness.

AARON. Apologies your honor, it's just that I happen to know how difficult it is for her to detail the events of the party. That she went upstairs to the bathroom and why does that matter? Because he followed. He was not invited into the bathroom.

LAWYER B. Counselor, unless you were there, I suggest you stop testifying and let her.

GABBY. Why? He's heard the story as many times as I've told it, your honor. At the police station, we must have had to repeat it 50 times.

AARON. I understand, and no, I wasn't there, but she told me the facts and she told me she wasn't flirting or…

LAWYER B. She just admitted to flirting. Is she now lying?

AARON. My sister doesn't lie.

LAWYER B. If she lied about that, could she also lie about alcohol consumption?

GABBY. Why do you keep asking the same questions?

AARON/GABBY. She/I wasn't drunk.

LAWYER A. Objection.

AARON. What are you objecting to?

LAWYER B. Your honor, we'd like to request a continuance based on new evidence.

GABBY. What new evidence? What does that mean, Aaron?

AARON. It means they want to delay the trial. (*to the judge*) Your honor, this is completely inappropriate. A continuance should have been filed at least--

LAWYER A. WE have a new witness. We request four weeks continuance.

AARON. A new witness? To the attack?

LAWYER B. Objection your honor.

GABBY. Four weeks!? They want us to wait for four more weeks? He gets to go home. He gets four more weeks to do whatever he wants, while I can't even go to the bathroom? That's not fair!

AARON. Gabby, calm down. I'm handling this. Let me handle this.

GABBY. Let you handle this? This is complete bullshit.

TRANSITION TO GABBY AND AARON'S APARTMENT - APRIL 3

AARON. Why did you do that?

GABBY. Me?! That was completely insane! Four more weeks because some new witness has suddenly appeared.

AARON. Yes, it's insane. But your behavior—

GABBY. My behavior?

AARON. You swore in court. You stormed out. You—

GABBY. I was upset.

AARON. Right, but the judge and the jury can't see you get like that.

GABBY. Why not?

AARON. Because it makes you seem overly emotional.

GABBY. Overly emotional?!

AARON. Makes you seem like you're like some pissed off girl. Not like a victim.

GABBY. And how does a "victim" act, Aaron?

AARON. Collected. Calm. Not like you're out for revenge.

GABBY. I am out for revenge.

AARON. So am I! But we have to be able to keep it together. Because the evidence isn't going to do it for us on this one, OK? Sexual assault cases are difficult to prove, and if he has a witness that swears they saw you engage with him in any way that didn't seem hostile then we have a problem.

GABBY. Because they'll say I woke up the next morning with buyer's remorse.

AARON. They'll ask why you didn't fight him off.

GABBY. Because I didn't go to the hospital with broken bones and ripped clothes.

AARON. They'll ask you what could have happened to let him think—

GABBY. Because he's some college-educated rich asshole.

AARON. They'll see him as a good looking, normal guy and you as some hysterical wreck.

GABBY. They'll say I wanted it.

AARON. …Yes.

GABBY. Aaron, I didn't want it. I said no. I told him I was on my period. I told him that I wasn't on the pill. I told him everything I could think of that's supposed to make him not want to… He didn't care. He just did it anyway. Maybe because he was drunk, or because he was sure I wouldn't say anything, or maybe because he figured if he got caught, he could have one of his buddies show up as a surprise witness in his defense.

AARON. I'm so sorry, Gabs. I'm sorry I wasn't there to protect you.

GABBY. Protect me? Is that what you think I needed?

AARON. I don't know.

GABBY. How's a six-foot ballerina supposed to protect me from this, huh?

AARON. And that's the worst part, right? There was nothing else you or I could have done. This shit just happens.

GABBY. Yes.

AARON. I just want to make it better and I can't.

GABBY. I don't need you to make it better, Aaron.

AARON. What else are big brothers for?

GABBY. You tell me.

TRANSITION TO COURTROOM - May 5

BAILIFF. All rise.

AARON. Your honor. Ladies and gentlemen of the jury. I was going to start by telling you about the victim. About the things that have been

done to her at the hands of the defendant. But to only define her as what's happened to her would be further injustice, and to speak for her won't give her what she needs. Instead, I'm going to do something that should be done for all victims of sexual assault and I'm going to ask you to do the same. I'm going to listen. Sis, they're all yours.

GABBY. Thank you.